THE STATE
versus
VICTOR MAZHAMBE
and
ABSEY BIZEK KAHURUVA
and
BARNABAS MURENZA

HIGH COURT OF ZIMBABWE
MANDAZA J
HARARE, 26 March 2026

Assessors: Mr Chimonyo
Mrs Maoneke

Criminal Trial

A Masamha, for the State
L. Rubaya, for the 1st accused
L. Nyamudeza, for the 2nd accused
J. Mawere, for the 3rd accused

MANDAZA J: The accused persons appeared before the court facing a charge of murder as defined in s 47 (1) of the Criminal Law (Codification and Reform) Act, [*Chapter 9:23*] ("the Criminal Law Code"). The allegations were contained in the charge sheet and the state outline.

BACKGROUND

Allegations are that on 22 September 2024 at around 0005hours and at Manyozo Village, Chief Rusambo, Rushinga, the accused persons one or all of them unlawfully and with intent to kill, or realizing that there was a real risk or possibility that their conduct might cause death but continuing to engage in that conduct despite the risk or possibility, struck Grace Murenza with an axe on the head and cutting off her neck thereby causing injuries from which Grace Murenza died. The state further alleged that the third accused killed the deceased for ritual purposes because he wanted to use her blood as a charm to enhance his business. In doing so, the third

accused engaged the first accused to kill the deceased, and the two settled for US$2 500 as the service fee. The two also agreed to engage the services of the deceased accused (David Meja) who was the deceased's ex-husband, to lure the deceased to a secluded place. Notably, the deceased accused died whilst on remand.

In carrying out their mandate, the deceased accused person engaged the services of the second accused. On 21 September 2024, the deceased accused, the first and second accused met in order to strategize how they were going to execute their plan. The deceased accused went to lure the deceased whilst the first and the second accused hid in a bedroom where the deceased was going to be brought by the late deceased accused. The deceased accused went and called the deceased on the pretext that he wanted to collect his clothes and tablets which he had left in the third accused's bedroom where they used to sleep. The deceased informed her boyfriend Onisen Magora that the deceased accused had come to collect his belongings, and she left to go and hand him the clothes and tablets. As the deceased unlocked the door, the first accused came from behind and struck her twice on the cheeks with an axe and she fell down unconscious. Whilst in that state, the deceased accused cut off her head using the same axe. The trio took the head of the deceased leaving the torso of the deceased in the house and alerted the third accused that the job had been done. The third accused thereafter instructed them to take the head of the deceased to a Zion Church blair toilet and the third accused followed and collected blood from the wound where the head had been cut off. The head was then thrown into a blair toilet.

In the morning, the body of the deceased was discovered by the deceased's daughter who confirmed that its head was missing. The torso and head of the body were recovered in different places and it was confirmed that they all belonged to the deceased, Grace Murenza.

The three accused persons pleaded not guilty to the charge.

FIRST ACCUSED DEFENCE OUTLINE

The first accused person denied the allegations against him in *toto*, stating that they are malicious and unfounded. The first accused person vehemently denied any association with the second and third Accused persons or conniving to kill the deceased. He stated that he never participated in or aided the brutal killing of the deceased and that he was being falsely implicated

by the deceased accused and the second accused. He stated that the confession that was made by the deceased accused against him is a lie and that he was neither an associate nor familiar with the deceased accused. He denied association with the third accused as he did not stay in the village are as he had migrated to Rushinga township. The allegations against him were preferred following confessions by deceased accused who sought to implicate many after he killed his girlfriend following infidelity disputes. The police relied on the leads by deceased accused and not evidence or information from independent witnesses who are not an accomplice.

SECOND ACCUSED DEFENCE OUTLINE

The second Accused person pleaded not guilty to the charge being laid against him stating that on the fateful evening, he was at home sleeping, and he never went anywhere near the crime scene and does not know or understand why he is being implicated in the commission of the crime. He sought to adduce the evidence of his father Mr Ledwin Kahuruwa to corroborate the fact that he was at home sleeping when the offence was committed. He denied ever participating in, arranging, cooperating with or conspiring in any way to murder the deceased. He said thatonly knows the deceased, the first and third Accused persons as his neighbours that he knew from a tender age and they are way older than him for him to be friends or associates with them. He also only knew the deceased accused as the deceased's husband and a notorious thief who terrorized the neighborhood with his acts of theft and he never spoke to the deceased accused. He denied playing any role in the orchestration and or the execution of the deceased person's murder neither do the state papers show or link him to the commission of the offence.

THIRD ACCUSED DEFENCE OUTLINE

The accused denied the allegations in their totality stating that he did not commit or perpetrate the alleged offence in question nor had a conversation or discussion with the first & second Accused persons prior, during or after the commission of the offence. He disassociated himself from the deceased accused, first and second accused saying that he never connived with them to murder the deceased and as such they are falsely implicating him. He denied that he promised a reward of USD2 500-00 to the first & second accused persons upon completion of the alleged offence is denied by the third accused person. It was his submission that since there was no compelling plausible evidence to prove his involvement in the commission of the

offence, he was neither taken for indications nor was a statement recorded from him like what happened with the other two accused persons. He alleged that on the fateful day when the alleged offence was committed, he was in Harare from 18 to 22 of September 2024 attending a family bereavement at Harchy farm in Harare where the daughter of one Susan Mukoka had passed. In his defence of alibi, the accused person intended to call a witness, Susan Mukoka, to corroborate his evidence. He highlighted that he suspected that the deceased must have been murdered by the deceased accused as they were embroiled in a nasty and complicated sexual relationship. He explained that the deceased accused was not happy that the deceased had moved on with Onisen Magora which justifies why the deceased accused killed the deceased for abandoning him for another man. He stated that he strongly suspects that the false implication on his part was necessitated and orchestrated by deceased accused in connivance with the first and second accused to lessen their moral blameworthy and to peddle a false narrative in the community that the deceased was killed for ritual purposes by her blood brother.

THE PROSECUTION'S CASE

The state opened its case by applying to tender the postmortem report, sketch plan, first and second accused warned and cautioned statements, photographs of the deceased and a collage of photographs of the first and second accused making indications. There were no objections from the accused persons. The court duly admitted the documents which became exhibits 1 to 7 respectively. The state sought the formal admission into the evidence of several witnesses' testimonies in terms of s 314 of the Criminal Procedure and Evidence Act [*Chapter 9:07*], hereinafter referred to as "the CP &E Act". The state thereafter invited viva voce evidence of 4 witnesses. The summary of each of the witnesses is given below.

ONISEN MAGORA

He was the deceased's boyfriend. It was his evidence that on 22 September 2024, he went to visit the deceased in her village. They had supper with the deceased at around 2200hrs. After having supper, there was a knock at the door, which was attended by the deceased. The deceased then came back and indicated that it was the deceased accused who was asking for his clothes and tablets. She also indicated that the deceased accused was carrying an axe. He offered to accompany deceased who highlighted that she was comfortable. He told the court that he

remained seated in the dining room and the deceased did not come back. He assumed that since they had been together before, they might have come to an agreement. At around 5am, the daughter of the deceased by the name Prisca came and asked for her mother. He told her he did not know where her mother had gone but that she went away in the company of the deceased accused and had not come back. The daughter went out to a certain house and shortly after came back crying and asked him to come and see what had happened to her mother and that she had seen some blood on the verandah. The house where the body of the deceased was found used to be the house where the deceased and the deceased accused stayed during the subsistence of their marriage. After seeing the blood, he asked the daughter of the deceased to open the door where he saw the body of the deceased lying in a pool of blood. It was his testimony that he went to the kitchen where the mother of the deceased was sleeping to inform her and ask her what he was now supposed to do. She told him to return to Harare so he could inform Albert, but he refused. He then started moving around looking for the Magwaja household whom he came back with to the scene of crime. Upon arrival, they were informed that the body of the deceased had been taken to Rushinga. He testified that he does not know how the first and second accused are linked to the commission of the offence. He confirmed that he only saw the third accused on 23 September 2024 when he was going to have his statement recorded at the police station. When asked about the deceased's head, the witness said that they went to consult a traditional healer in the company of the third accused where they were told that the head was going to be found and the third accused was given some herbs to sprinkle where the body of the deceased was. He confirmed the recovery of an axe handle and that the blade was not there.

GIVEMORE TINAGO

The witness is a detective constable stationed at ZRP Mt Darwin attached to the Criminal Investigations Department. He was neither the arresting detail nor the investigating officer in this case. His participation in this case was that he led the team which went with accused 1 for indications. The indications were done at the instance of the accused person. After the arrest of the first accused person, he was taken to CID Mt Darwin, where the charge was read to him and he was asked whether he wanted to make any indications. The team which the officer was leading was constituted by the following officers: Detective Cst Manhanga who was the driver,

Detective Cst Chinganga who was the interpreter, Detective Cst Mapfumo who was the photographer, Detective Cst Hwarareshumba who was providing security to the accused person.

It was his evidence that the indications were done a few days after the offence was committed. He stated that the accused persons were taken separately to do the indications with the first accused person being the first to make indications. He testified that they advised the accused of his rights and the accused confirmed that he would like to do indications freely and voluntarily.

The accused person told the police that he would start indicating from ZRP Rushinga to the place where he committed the offence. He led the detectives to the deceased's house where he indicated the place where he met the second accused and the deceased accused. They met at an abandoned house where they were going to commit the offence. He then led the detectives to his house where he took an axe which was used to strike the deceased. He indicated where he waited for the deceased accused who was going to come with the deceased and how he then struck the deceased on her cheeks. After striking the deceased, he handed over the axe to the deceased accused who beheaded the deceased. He indicated that he left the head of the deceased with the second accused and the deceased accused. He then proceeded to where the third accused had parked his vehicle to advise him that the job was done. He told the police that he went to a Blair toilet where the second accused and the deceased accused were waiting for them. The head was then handed over to the third accused who took blood from the head of the deceased which they then dumped in a Blair toilet. The witness testified that during the time of the indications, the accused was in cuffs but could not remember if they were hand cuffs or leg irons. It was his testimony that the first accused plotted the offence and engaged the second accused.

The witness further advised the court that the indications were done with the full participation of the accused who did not complain that there was anything untoward. The accused was free all the time.

The witness gave evidence in relation to the indications that were done by the second accused. The second accused made indications the same day as the first accused. It was his evidence that the second accused conceded making the indications and he signed to that effect. The second accused made the indications freely and voluntarily.

He indicated an abandoned house where they plotted how to execute the offence. He also indicated the house where the deceased was going to be lured to and where he was hiding. He indicated how the first accused struck the deceased on both cheeks and how the head of the deceased was beheaded. He took the detectives to the toilet where the deceased accused and himself waited for the first and third accused. The indications which were made by the second accused were photographed. The witness linked the second accused to the offence as he indicated an abandoned house where the crime was plotted. During the indications, there was an independent witness.

PARADZA MASORA

The evidence of this witness posed challenges to prosecution. It was his evidence that, as he was attending the funeral of the deceased, he was picked by the police from the crowd that was gathered to be an independent witness to the indications that were being done by the accused persons. He told the court that he witnessed the police take one accused person after the other for the indications, and as the indications were being made, he did not see anything untoward by the accused persons. He testified that the police would ask the accused person to show them what actually transpired. He said that the deceased accused was the first to make indications, followed by the first accused. He testified that the first accused indicated that he waited for the deceased accused at a certain place and he had an axe. The first accused stated that after beheading the deceased, they went to the road with the head of the deceased, where the third accused's motor vehicle was parked. They handed the head over to the third accused who got hold of the head and returned it to them. It was also his evidence that when the first accused was making indications, the other accused was waiting in the motor vehicle, and the indications took about 15 to 20 minutes.

He witnessed indications that were done by two accused persons, that is the deceased accused and the first accused. He denied that a statement was taken from him by the police and went on to say that he does not appreciate what a statement is. Additionally, he denied having witnessed indications by the second accused person as the state alleged.

During cross examination, the witness conceded that the statement that he purportedly made to the police should be disregarded because he never gave a statement to the police no sign

any document on the day of the indications. When asked on whether he saw any signs of assault on the accused persons, he replied that he did not make any observations as he was concerned about his safety and that he was not settled as that was his first time moving with the police. He even said that he was not free and comfortable as he gave his testimony in court.

NORMAN MACHINGAMBI

He is a member of the Zimbabwe Republic Police and he was assigned the case sometime in September 2024 when the deceased was murdered. It was his testimony that he interviewed witnesses including Onisen Magora who pointed to him that the deceased accused was the last person to see the deceased person. He then searched for deceased accused to no avail. An alert was made to sister stations, and he was arrested in Bindura at Garati panning site by CID Bindura. The deceased accused was taken from the custody of CID Bindura. The deceased accused was first interviewed of the offence in Bindura and he admitted that he committed the offence and implicated the first, second and third accused. He was then taken to CID Mt Darwin. It was his testimony that after they had left the deceased accused at CID Mt Darwin, they proceeded to Rushinga Chomutuku looking for the first and second accused. They arrested the first accused who admitted having committed the offence and implicated the deceased accused, second and third accused. After the interview, first accused led them to his bedroom where he showed them the axe blade that he used to strike the deceased which was on the floor. They recovered the axe blade only which was not attached to the axe handle and the axe blade had some blood stains on it. When asked about the axe handle, the first accused told them that the handle had been thrown away. Photographs of the axe blade were taken, and it was recovered as an exhibit. He testified that he recovered the axe blade in the company of DAI Gadzira, DC Manhanga, DC Tinago and DC Gwarareshumba. After the arrest of the first accused, they arrested the second and third accused.

The second accused implicated all the other accused. The first accused said that he threw the axe handle away. During the time at which the first accused was arrested, the second accused's whereabouts were not known as he was not at his place of residence. The second accused was only arrested a day after the arrest of the first accused at the shops after he had been implicated by the first and deceased accused. No recoveries were made from the second accused.

He was taken to Rushinga for formal indications. After the accused persons had made indications, he recorded warned and cautioned statements from them at CID Mt Darwin which were consequently confirmed at the magistrates' court in Mt Darwin.

He testified that during the interview of the deceased accused, he was told that the first accused was approached by the third accused so that he could kill his sister for rituals. The first accused agreed to kill the deceased on behalf of the third accused for a fee of **USD 2 500.** The first accused did not get the payment, and he even kept asking for his payment whilst he was at CID Mt Darwin. The first accused and the third accused roped in the deceased accused to help them execute their plan. The accused persons met around 2200hrs discussing how they were going to execute their plan and they agreed that the deceased accused was going to call the deceased on the pretext that he wanted to collect his clothes and tablets.

He also testified that the first accused confessed to him that he was approached by the third accused who told him that he wanted him to kill his relative. He then included the deceased accused as he was not in good books with the deceased accused and that would make the plan easier. He assumed that the first accused was the master mind behind the murder of the deceased.

He told the court that from the indications and the warned and cautioned statements, he concluded that the events were similar wherein the first accused admitted striking the deceased on both sides of the cheeks. When the head of the deceased was recovered, it had cuts on both sides of the cheeks. The accused had told him that they had dumped the head of the deceased in a blair toilet from which it was recovered. The axe blade that was recovered also matched the axe handle that was recovered.

The witness told the court that he does not have any evidence against the third accused except for the implications by his co-accused nor did he get anything tangible to solidify the issue of payment of **USD 2 500.** He confirmed that he did not investigate the third accused's alibi. He stated that he sent the third accused's phone to ZRP Cyber Unit but he did not get anything from it. He told the court that during his investigations, he learnt that the third accused was not in good books with deceased accused as the deceased accused used to stay at the third accused's house and was a serial thief.

The statements that were given by the accused persons were crucial in the case. Because they hold a sentimental value in determining the matter, the contents of the statements recorded are given hereunder as they appear in the original copies.

FIRST ACCUSED WARNED AND CAUTIONED STATEMENT

> "I admit to the charges levelled against me, on the 19th day of September 2024 at around 0900 hours, Barnabas Murenza parked his motor vehicle at my gate and called me. He then asked me if I was courage enough to assign me a task and I told him to tell me the task. Barnabas Murenza then told me that he wanted a head of a person but the head he wanted was of his sister Mai Junior who is the deceased but it was difficult for him to kill her and people might suspect him so he assigned me to do the task so that his things would go well. I then told him that I was not able to do the task but he said that I should not be afraid he once did that. I was supposed to talk with Ba Junior David Meja who is the former husband of the deceased and they are in dispute to help me kill the deceased. Barnabas Murenza promised to give us US$2 500-00 when we finished the job. On the 20th day of September 2024 at around 0500 hours, I met with David Meja on his way from the deceased's homestead and greeted each other and started walking together. Whilst we were walking, I told David Meja that his brother-in-law Barnabas Murenza had come to my homestead and told me that he wanted us to kill his wife Mai Junior who the now deceased and took off her head and gave it to him and he will give us US$2 500-00 in return. David Meja replied that it was easy thing and he was the one who was going to call his wife to a place where there were no people and kill her. On the 2first day of September 2024 at around 2100 hours, we met with David Meja who informed me that Absei Bizeki Kahuruva would join us and became three on the task of killing the now deceased. On the 2second day of September 2024, I met with my colleagues and planned that I and Absei Bizeki Kahuruva were going to hide in Barnabas Murenza's house where David Meja was going to bring the now deceased and we would kill her there. We parted that morning before we parted, David Meja said he was going to take Absei Bizeki Kahuruva and they will both come and take me later that night. On the same day at around 2200 hours, David Meja and Absei Bizeki Kahuruva came and called me whilst they were standing along the road and I went there. We then all went to Karubwa's homestead where no one stays and sat there, David Meja asked for axe and I told him that I did not have an axe. David Meja told us that we were wasting time and instructed me to go to my homestead and take an axe. I went to my homestead and took my axe thereafter I went back to where I left the two. We then went to Barnabas Murenza's homestead where we hid in the dining room waiting for David Meja who had gone to call his wife who is the now deceased who was in another house. David Meja came back in the company of the now deceased who tried to unlock the spare room door. Whilst she was unlocking the spare room door, I got out of the dining room and struck the now deceased once on the head and she fell down and I went and stood a distance. I then told David Meja to cut the head from the body but I did not see what he used to cut the head. After David Meja had cut the head, he went into the spare room and took a bedding sheet and wrapped the head. We went to the road where David Meja asked the whereabouts of the one who had hired us. Barnabas Murenza whom I said that he was around. I then went and called Barnabas Murenza who was standing at the bridge close by my homestead. I told him that we have done what he sent us to do and he told us to go to the ZION church blair toilet. Upon arrival at the ZION church blair toilet, Barnabas took the head, unwrapped it and took a knife and started to pork the cut wound dripping blood in a plastic container. I then asked Mhofu ie Murenza when he was going to give us our dues since we did the job he had tasked us to do. He told us he did not have money but was going to give us tomorrow evening. David Meja also told him that he wanted to disappear from the area

that very same time but Barnabas Murenza told him that he was going to give me the one whom he contracted. Barnabas Murenza asked if anyone had a snuff and I told him that I had unprocessed tobacco which I gave him. He smeared the tobacco on the cut wound. I then wrapped the head with the bedding sheet and tried to throw it into the Blair toilet pit but the hole was smaller than the head. David Meja made the pit hole wider by striking it with an axe then I threw the deceased's head in the pit and closed the hole with the flat stone which was in the toilet. We went back to the road to the direction of my homestead, then David Meja boarded bus going to Bindura and AbiseyBizeki Kahuruva went along the road towards his homestead."

SECOND ACCUSED WARNED AND CAUTIONED STATEMENT

"I do admit to the charges leveled against me. A man called Devi came on a Friday and said Absey I will come on a Saturday afternoon going to see Victor Mazhambe to deliberate on the issue he spoke with Barnabas Murenza. They came on a Saturday we deliberated on the issue we had planned with Victor and he stated that Barnabas wanted his sister Grace Murenza's head. Baba Junior deceased's husband said it won't be a problem he was going to call the now deceased since he left his belongings there, she was not going to refuse. On a Sunday Baba Junior came from his homestead in the evening and we decided not to do our deal while at their homestead then we agreed to go to a certain house across the road and plan how we were going to execute it. When we got there, we decided to wait for people to sleep. Baba Junior went to check if they had slept but he came back stating that they were still awake. At around 12 o'clock midnight he went behind the main house and knocked where he introduced himself as Baba Junior after being asked. When he left to go and call the now deceased the two of us remained in the dining room. She came unlocking the door then Victor who was standing at the corner in the dining room stroke Grace Murenza with an axe which was taken from Victor's homestead and she fell down. David took the axe, cut off the head and then took a cloth he wrapped the head and gave me to carry going via the footpath. Victor went to meet Barnabas and they came via another route. We went to a certain church where we waited along the road near the toilet. He took a plastic container, withdrew a knife, cut the head and drained blood into the plastic container. He asked for tobacco and sprinkled it on the head which was in the toilet pit. He took a stone and closed the toilet pit and we came back. We asked about the payment but he told us that he did not have cash that day but was going to see us the following day. We went along the road where we parted ways at the turnoff where Victor was going to his home."

CONFESSIONS

We have no apprehension that we are enjoined to find the accused guilty of murder on the strength of the confessions they made.

However, their confessions cannot be used against the third accused person. S259 of the CP and E Act proscribe that.

A confession is only admissible against its maker. It only saves to incriminate the person who made it. See *A-G v Bennett* SC11/07.

DEFENCE CASE

VICTOR MAZHAMBE

Victor Mazhambe testified that he was arrested whilst he was sleeping. The police entered his bedroom pointing a gun at him and Machingambi stepped on his chest and arrested him. He denied helping in the murder of the deceased nor implicating the second and deceased accused. He told the court that what the police recovered from his house was not an axe blade only but rather they recovered a complete axe which he used for his household chores and it is not the axe that was produced in the court. He denied the statement that was presented in court arguing that the police merely copied the statement that was made by the deceased accused and pinned it on him and that the police threatened to assault him if the statement was not going to be confirmed. He told the court that he got to know of the demise of the deceased in the morning when he heard people crying and he went to see what was happening. He testified that he does not know the third accused because he resides in Rushinga township whereas he stays in the rural areas. He said that he does not have a relationship with the second, third and deceased accused. He told the court that he did not make indications freely as he was forced by the police to do them.

Under cross examination, the accused stated that he learnt that the deceased accused was involved in the murder of the deceased as he overheard the mother of the deceased giving a statement to the police. When asked that it would not have been possible that the deceased was murdered by a lone killer, he denied stating that he concluded that the deceased accused could have killed the deceased by himself as he was always fighting with the deceased. He commented that he did not have a relationship with the deceased accused and it is possible that the deceased accused wrongly implicated him because he was being assaulted by the police forcing him to name other people. Despite that he insisted that the deceased accused was assaulted by the police, he said that he did not know where the deceased accused was assaulted. He testified that he was assaulted by the police in his bedroom using button sticks and he even got medical assistance at prison in Mt Darwin as he had swollen feet. He told the court that he did not register complains against the police at the magistrates' court because the police were with him during the confirmation proceedings and that the police had promised to project further assault if the statement was not confirmed. He denied the statement that was presented before the court stating

that he was forced to sign it by the police and they had written it using what they had been told by the deceased accused.

ABSEY BIZEK KAHURUVA

He told the court that he does not have a relationship with the first, third and deceased accused. He was arrested on his way from his in-laws' house. He testified that he met a certain old man who told him that he was wanted at his uncle's house where they wanted to slaughter a beast. He refused going there stating that since he had his elders, he should engage them so that they attend the function. The old man insisted to go with him and upon arrival at his uncle's place of residence, he was ordered to sit down, and his hands were tied with a rope from the back. People from the village gathered and he was told that he was being accused of the death of the deceased. The congregation also mentioned that the deceased accused had killed the deceased. He was told that his father had been taken and questioned his whereabouts and that's when he told them that he did not want his father to be involved in such stories. He then requested that he be taken to ZRP Rushinga so that he gives his side of the story. On the way to Rushinga, they met the police and he was put in the police's motor vehicle where he was handcuffed.

He denied admitting the charge in his statement stating that whilst he was at the police station, he was taken by CID Mt Darwin and he never had a conversation with police officers in Rushinga. He denied participating in the death of the deceased, stating that he was at home and went to sleep around 2000hrs and was awoken by his friend early in the morning around 0500hrs. He told the court that he never made any indications but he was taken by the police on some day and was told to point at places whilst they took pictures.

Under cross examination, he denied ever making indications to the police but rather its the police that told him to point at certain areas whilst they took pictures. He emphasized that he did not raise a complaint against the police during the initial remand because the police were there during the court proceedings.

BARNABAS MURENZA

He confirmed that the deceased is his biological sister. He raised the defence of *alibi* by stating that on 22 September 2024, he was attending a funeral at Harchy farm. He said that it was his nephew's funeral but he does not recall the name of the child but that she was a girl and she passed on 18 September 2024 whilst she was at creche. He told the court that he learnt of the death of the deceased after he was called by Rhoda Murenza Junior on 22 September 2024 at around 0500hrs. After he was told of the death of the deceased, he travelled to Rushinga and went to report to the police and proceeded to his rural home. He was arrested after the burial of the deceased after he had been implicated by the first, second and deceased accused. He denied ever meeting the co-accused persons on 21 September 2024. Commenting on the implications, he confirmed that from the papers, the first and second accused implicated him but they were now disassociating themselves from the statements that they had given to the police in court. He agreed that he did not have a good relationship with the deceased accused as he was a thief who stole his livestock whilst he was still married to his sister, the deceased. No recoveries were made from him. He confirmed that he went to visit a traditional healer as that was a family decision to do that.

Under cross examination, the accused told the court that he does not believe in African tradition but only went to the traditional healer as it was a family decision to do so. He confirmed that he was the one that was given herbs by the traditional healer because his elder brother had indicated that they be given to him. He denied that when he arrived from the traditional healer, the body of the deceased had been removed stating that it was not possible for it to be removed in the absence of a relative of the deceased. He denied offering money to the first accused if he killed the deceased. He stated that he does not know why a statement was not recorded from and why he was not taken to make indications.

Issues for determination

From the above, the court has the mandate to resolve the question as to who killed the deceased. The court should determine whether the accused persons were involved in the murder of the deceased. Notably, no one witnessed the murder of the deceased. The accused persons are being linked to the offence by the axe blade that was recovered from the first accused's house,

the axe handle that was picked in the bush which matched the axe blade, the indications and the confessions they made.

THE LAW AND ANALYSIS

On a charge of murder, it must first be established whether the accused's action was the factual cause of the end result, viz. if but for his action, the deceased would not have died when he did. It must also be shown that there was legal cause, viz. whether it was objectively foreseeable or within the range of ordinary human experience that the accused's action would lead to the death of the deceased. Where there has been a supervening event, this will not break the causal link between the accused's act and the end result if that subsequent event was foreseeable.

As regards *mens rea,* it must be shown that there was actual or legal intention to kill. Legal or constructive intention to kill arises where the accused does not mean to bring about death but continues to engage in an activity after he foresees that there is a real risk or possibility that the activity will result in the death of a person and is reckless as to whether or not death ensues

DOCTRINE OF COMMON PURPOSE

The common purpose doctrine is firmly grounded in English Law. The underlying principle of that doctrine is set out in *Macklin, Murphy and Others (1834) 2 Lewis 225 (1838) 168 ER 1136 where Alderson B observed that:*

> "It is a principle of law that if several persons act together in pursuance of a common intent, every act done in furtherance of such intent by each of them is, in law done by all."

The learned author, Burchell, in his book South African Criminal Law and Procedure Vol. 1, third ed. at p. 307 elaborates and redefines the doctrine of common purpose as follows:

> "Where two or more people agree to commit a crime or actively associate in a joint unlawful enterprise, each will be responsible for specific criminal conduct committed by one of their number which falls within their common design."

That definition was adopted in the local case of *S* v *Chanke* 2000 (2) ZLR 494 (S) at 497 wherein it was stated that

> "The long and short of it all is that the law ascribes joint collective criminal responsibility to people who collude or act with a common intent in furtherance of the commission of a crime regardless of who the actual perpetrator of the crime is. What this means is that every associate in crime is criminally liable for the criminal conduct of his compatriot in crime. This is meant to discourage and punish fellowship in crime. The underlying principle is that he who does a thing through another does it himself."

In casu, the accused persons acted in common purpose. In the case of *S* v *Madzokere & 3 Ors* SC 71-21, MAKARAU JA (as she then was) dealt with and defined the doctrine of common purpose as:

> "a principle that deems the participation of two or more persons in the commission of a crime where the two or more persons associate with a common intent to commit the crime and one of them does commit the crime. It thus provides for co-perpetrators of crime with a common intent. In essence, the doctrine provides that if two or more people act together in pursuance of a common intent, every act done by one of them in furtherance of that common intent is deemed at law to be the act of them all."

Section 196A of the Code provides that

> "196A Liability of co-perpetrators
>
> (1) If two or more persons are accused of committing a crime in association with each other and the State adduces evidence to show that each of them had the requisite *mens rea* to commit the crime, whether by virtue of having the intention to commit it or the knowledge that it would be committed, or the realisation of a real risk or possibility that a crime of the kind in question would be committed, then they may be convicted as co-perpetrators, in which event the conduct of the actual perpetrator (even if none of them is identified as the actual perpetrator) shall be deemed also to be the conduct of every co-perpetrator, whether or not the conduct of the co-perpetrator contributed directly in any way to the commission of the crime by the actual perpetrator.
> (2) The following shall be indicative (but not, in themselves, necessarily decisive) factors tending to prove that two or more persons accused of committing a crime in association with each other together had the requisite *mens rea* to commit the crime, namely, if they—
>
> (*a*) were present at or in the immediate vicinity of the scene of the crime in circumstances which implicate them directly or indirectly in the commission of that crime; or
>
> (*b*) were associated together in any conduct that is preparatory to the conduct which resulted in the crime for which they are charged; or
>
> (*c*) engaged in any criminal behaviour as a team or group prior to the conduct which resulted in the crime for which they are charged."

We hold that the accused persons agreed between themselves to cause the death of the deceased. The third accused person engaged the first accused person so that he would kill his relative who is the deceased Grace Murenza. The first and third accused persons then roped in the deceased accused because the deceased accused was in bad books with the deceased and that would make him a prime suspect if anything was going to happen to the deceased. The deceased

accused also roped in the second accused in committing the offence. This clearly shows that all the accused persons intended the end result therefore they are all criminally liable for the death of the deceased and are bound by the doctrine of common purpose.

THE LAW ON THE DEFENCE OF AN *ALIBI*

The state, in its papers correctly admitted that it did not pursue the defence of alibi raised by the third accused. The record of proceedings correctly points out that there is no evidence that an attempt was made to prove whether third accused was attending a funeral or not No investigations were carried out and this the state did not dispute.

Third accused's defence was an alibi, namely that he was not at home at the material time having only arrived in Rushinga on 22 September 2024 around 08000hrs to 0900hrs. He said that he had travelled to Harare on 18 September 2024 to attend a funeral. He denied being associated with the death of the deceased. However, it is challenging to accept how one can attend a funeral of someone whose name they do not know. That brought questions to the court on whether to accept the defence of alibi or not.

The test to be used in considering the plausibility of the defence of alibi was stated in *R* v *Hlongwane* 1959 (3) SA 337 (AD) in that case, HOLMES AJA had this to say at 340H:

> "The legal position with regard to an alibi is that there is no onus on an accused to establish it, and if it might reasonably be true, he must be acquitted. *R* v *Biya* 1952 (4) SA 514 (AD). But it is important to point out that in applying this test, the alibi does not have to be considered in isolation." (emphasis added)

Further on at 341A-B the court held:

> "The correct approach is to consider the alibi in the light of the totality of the evidence in the case, and the Court's impressions of the witnesses. In Biya's case supra-GREENBERG JA said at p521:
>
> "… if on all the evidence there is a reasonable possibility that this alibi evidence is true it means that there is the same possibility that he has not committed the crime."' See also Mushanawani A v S 22-SC-108 per MAKONI JA.
>
> In *Matanga* v *The State* S-17-15 at p6, MALABA DCJ (as he then was) stated that,

> "An alibi is a statement of defence to the effect that a person accused of a crime was at a specific place different from the crime scene".

Applying that test to the facts of the present case the question is whether there is a reasonable possibility that the alibi evidence is true. The case authorities are clear that where the accused raises the defence of alibi, it is not for him to prove it but for the State to disprove it. See *S* v *Mutandi* 1996 (1) ZLR 367 (HC); *S* v *Musakwa* 1995 (1) ZLR 1 (SC); *S* v *Masawi & Anor* 1996 (2) ZLR 472 (SC).

In *S* v *Musakwa* MCNALLY JA stated:

> "What no-one seems to have realised is that the defence raised was that of an alibi. The appellant was saying that he had only just arrived when he was accused. So, he was not there when the confidence trick was set in motion. The appellant said so right from the beginning. So why did the police not check whether he was being truthful when he said he worked for "Heat and Systems" who make pressure pipes? Why did they not check his story that he left there at 4.30pm? Why did they not check how long it takes to walk from there to the spot where the offence was committed? Why did they not ask the complainant what time it was when the two young men approached her? The court should have been alive to the importance of these matters. It was not simply a matter of the reliability of the young woman's powers of recognition."

MCNALLY JA further stated in *S v Musakwa (supra),* at p3:

> "I have spoken, often enough of the boxing ring approach to criminal trials. It is not good enough simply to throw the complainant and the accused into the ring and decide the matter on credibility. ..."

and further down:

> "The *alibi* defence is referred to in section 158 of the Criminal Procedure and Evidence Act and in Hoffmann and Zeffertt *South African Law of Evidence* 4 ed at p619. The onus is on the State to disprove the alibi: *R* v *Biya* 1952 (4) SA 514 (A); *S* v *Khumalo & Ors* 1991 (4) SA 310 (A) at 327 H. The State made no effort to disprove the alibi in this case. Mistakes in identification can happen. The police should know this. They should have checked."

A defence of alibi is considered hand in hand with all the other facts of the case. Inasmuch as the state did not dispute the defence of an alibi, the third accused failed to show that he was indeed in Harare when the murder occurred. The third accused failed to tell the court the name of the child that had passed where he claims he was attending a funeral. I, therefore, find the *alibi* defence unmeritorious if analysed in sync with all the evidence presented before the

court. This court is also persuaded to dismiss the defence on the basis of the statements made by accused one and two and the totality of the evidence presented before the court. It is trite that an alibi must be assessed having regard to the totality of the evidence and the impression of the witnesses on the court. See *S* v *Kandowa* 2013 (3) NR 729 (HC). We are in doubt that the third accused raised a false alibi. He is the architect of the offence. He is simply trying to distance himself from the offence he authored and hired some people to commit. All the totality of the evidence that came out in this case points to him as the mastermind of the offence. He is a businessman and he wanted to use charms to enhance his business.

We also wonder why a statement was not recorded from him, he did not participate in indications and his defence of an alibi was not pursued.

THE LAW AND ANALYSIS OF CIRCUMSTANTIAL EVIDENCE

The next issue to consider is the question of circumstantial evidence. The celebrated case of *R* v *Blom* 1939 AD 188 at 202–203 outlines how the trial court should treat circumstantial evidence in criminal matters. The cardinal principles are that;

> (i) that the inference sought to be drawn must be consistent with all proved facts. If not, the inference cannot be drawn.
>
> (ii) that the proved facts should be such that they exclude every reasonable inference from them save the one to be drawn. If they do not exclude other reasonable inferences, then there must be doubt whether the inference sought to be drawn is the correct one. See also *S* v *Tambo* 2007 (2) ZLR 33 H; *S* v *Marange & Others* 1991 (1) ZLR 244 (S).

It is competent for a court to return a verdict of guilty solely on circumstantial evidence; see *S* v *Shonhiwa* 1987 (1) ZLR 215 (S); *S* v *Vhera* 2003 (1) ZLR 668 (H) at 650C. Hence, the inference sought to be drawn must be consistent with all the proved facts. If it is not, then the inference cannot be drawn. All the proved facts should be such that they exclude every reasonable inference from them save the one to be drawn. If they do not exclude other reasonable inferences, then there must be doubt whether the inference sought to be drawn is correct. *See S* v *Jekiseni HB106-08; S* v *Muyanga HH79/13; Esther Manyengavana* v *S, S-83/88*

The facts of the matter prompt a reasonable individual to draw inferences that the third accused person is the mastermind of the murder of the deceased. All the other accused persons have implicated the third accused person. This clearly shows that he participated in the commission of the offence.

THE LAW ON CONFESSIONS

At this instance, the court must determine the admissibility of the warned and cautioned statements of the accused persons as well as the indications that they made which they now seek to disassociate themselves from. The admission into evidence, of extra curial statements is regulated by s 256 of the Criminal Procedure and Evidence Act [*Chapter 9:10*] which provides that:

> **"256 Admissibility of confessions and statements by accused**
>
> (1) Any confession of the commission of an offence and any statement which is proved to have been freely and voluntarily made by an accused person without his having been unduly influenced thereto shall be admissible in evidence against such accused person if tendered by the prosecutor, whether such confession or statement was made before or after his arrest, or after committal and whether reduced into writing or not"

It is permissible for a court to convict a person accused of crime on the basis of his/her confession. That it so is supported by s 273 of the CP & E Act which prescribes that: "273 Conviction on confession

> "Any court which is trying any person on a charge of any offence may convict him of any offence with which he is charged by reason of a confession of that offence proved to have been made by him, although the confession is not confirmed by other evidence:
>
> Provided that the offence has, by competent evidence other than such confession, been proved to have been actually committed"

In the case of *S* v *Shamba and Another* HH396/23, MUTEVEDZI J had this to say in relation to confessions,

> "The statute does not define a confession. Its meaning appears to be something that has been taken for granted. At common law, a confession is an unambiguous admission of guilt synonymous with a plea of guilty before a court. It follows therefore that all the safeguards employed to ensure that a plea of guilty is genuine equally apply in the measurement of the truthfulness of a confession. For instance, where an accused makes a statement supposedly admitting the commission of an offence but the statement includes the possibility of a valid defence, that statement is simply considered as an admission and not a confession."

In the premises, I am convinced that the accused persons volunteered to make the indications. The first accused alleged that he had been assaulted by the police and he was forced to make indications whilst the second accused alleged that he was assaulted by the police and on a certain day he was taken to make indications by the police who were telling him to point at certain places whilst capturing pictures. Despite raising allegations of assault in the trial court, they were asked by the state if they registered complaints against the police in their initial remand proceedings and they answered in the negative. The first accused told the court that he got medical assistance at Mt Darwin prison facilities but he did not tell the same to his legal practitioners and the same was not challenged when the arresting detail was giving evidence in court. Despite the claiming that he had medical evidence to prove the injuries he suffered as a result of the alleged assaults by the police, he did not produce any. It was his responsibility to do so.

The first and second accused signed documents that inform them of their rights after choosing to do indications. They also appended their signatures after the indications had been concluded showing that they had participated freely and voluntarily. It is unreasonable to be swayed by the explanation by the accused persons that they made their indications unwillingly, yet they signed twice confirming their participation in the indications freely and willingly. Evidence of the indications tallies with the warned and cautioned statements. Conclusively, there is nothing untoward to suggest that the indications were made against the accused persons' will.

DISPOSITION

The doctrine of common purpose says that where two or more people agree to commit a crime, or actively associate in a joint unlawful enterprise, each will be responsible for specific criminal conduct by one or other of them which falls within their common design. Liability arises from their common purpose to commit the crime. The act of one is imputed, as a matter of law, to the other or others. Prior planning is not significant. See *S* v *Safatsa and Ors* 1988(1) SA 868 (A). In murder cases, the act of one in causing the death of the deceased is imputed, as a matter of law, to the other or others. We hold that all the three of them had made common purpose with one another in planning the death of the deceased. Each accused's liability arises

from their 'common purpose' to commit the crime: see Jonathan Burchell, *Principles of Criminal Law*, 5th ed. At p477.

In *casu*, just about every aspect of the accused's person's conduct classically fits into all the facets of the doctrine of common purpose. The third accused person came up with the idea, shared his idea and promised the accused a financial reward. The first and the second accused including the deceased, David Meja, carried out the mission.

The court is satisfied that the State has proved its case beyond any reasonable doubt. We find that the accused actually intended to kill the deceased. They desired her death. Thus, the three accused persons are found guilty of murder in terms of s 47 (a) of the Criminal Law Code.

MANDAZA J: …….

The National Prosecuting Authority, the State's legal practitioners
Rubaya and Chinuwo, the First Accused's Legal Practitioners
Rujuwa Attorneys, the Second Accused's Legal Practitioners
Gumbo and Associates, the Third Accused's Legal Practitioners